

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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VICTOR ALAMO,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

NYPD POLICE OFFICER CHRISTIAN R. PEREZ,
Shield No. 14888, NYPD POLICE OFFICER DENNIS
WU, Shield No. 18327, NYPD POLICE OFFICER
JAMES J. MILLS, Shield No. 1069, and NYPD POLICE
OFFICERS JOHN AND JANE DOES NUMBERS ONE
THROUGH TEN,

Plaintiff designates Kings
County as the place of trial.

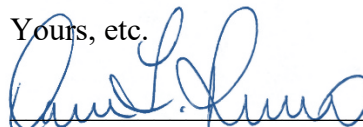
Defendants.
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 23, 2022

Yours, etc.



Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff

1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: NYPD POLICE OFFICER CHRISTIAN R. PEREZ, Shield No. 14888, NYPD 67th Precinct; 2820 Snyder Avenue, Brooklyn, NY 11226

NYPD POLICE OFFICER DENNIS WU, Shield No. 18327, NYPD 67th Precinct; 2820 Snyder Avenue, Brooklyn, NY 11226

NYPD POLICE OFFICER JAMES J. MILLS, Shield No. 1069, NYPD 67th Precinct Criminal Intelligence Section; 2820 Snyder Avenue, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
VICTOR ALAMO,**VERIFIED COMPLAINT**

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentNYPD POLICE OFFICER CHRISTIAN R. PEREZ,
Shield No. 14888, NYPD POLICE OFFICER DENNIS
WU, Shield No. 18327, NYPD POLICE OFFICER
JAMES J. MILLS, Shield No. 1069, and NYPD POLICE
OFFICERS JOHN AND JANE DOES NUMBERS ONE
THROUGH TEN,Plaintiff designates Kings
County as the place of trial.Defendants.
----- X

Plaintiff VICTOR ALAMO, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 6, 2021, at approximately 2:30 p.m., Plaintiff VICTOR ALAMO, while lawfully at or around 9720 Kings Highway, County of Kings, State of New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was subjected to the use of excessive force in his unlawful arrest, as well as suffered mental and emotional injury as a result. Plaintiff was subjected to unlawful imprisonment for approximately two (2) weeks at the NYPD 67th Precinct, Kings County Central Bookings, and Rikers Island Correctional Facility before he was finally released on bail. Plaintiff's criminal case was dismissed and sealed on or around January 3, 2022. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and fabricated evidence against Plaintiff in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Victor Alamo is a resident of the state of New York.
3. NYPD Police Officer Christian R. Perez, Shield No. 14888, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD Police Officer Christian R. Perez, Shield No. 14888, is being sued in his individual and official capacities.
5. NYPD Police Officer Christian R. Perez, Shield No. 14888, was at all times relevant herein assigned to the NYPD 67th Precinct.
6. NYPD Police Officer Dennis Wu, Shield No. 18327, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD Police Officer Dennis Wu, Shield No. 18327, is being sued in his individual and official capacities.
8. NYPD Police Officer Dennis Wu, Shield No. 18327, was at all times relevant herein assigned to the NYPD 67th Precinct.
9. NYPD Police Officer James J. Mills, Shield No. 1069, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. NYPD Police Officer James J. Mills, Shield No. 1069, is being sued in his individual and official capacities.
11. NYPD Police Officer James J. Mills, Shield No. 1069, was at all times relevant herein assigned to the Criminal Intelligence Section of the NYPD 67th Precinct.
12. NYPD Police Officers John and Janes Does Numbers One through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
13. NYPD Police Officers John and Janes Does Numbers One through Ten are being sued in their individual and official capacities.
14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On December 6, 2021, at approximately 2:30 P.M., Plaintiff was lawfully in the vicinity of 9720 Kings Highway, County of Kings, State of New York, when he was subjected to an unlawful stop, question, frisk, search, false arrest, false imprisonment, and denial of various federal constitutional rights by the defendant NYPD police officers.

18. Plaintiff was inside his apartment at the aforementioned location when he saw a man outside trying to steal his car, which was lawfully parked on the street outside.

19. The Plaintiff came outside to stop the thief and was descended upon by defendant officers, who had already been called to the scene.

20. It was at this point that defendant officers began to arrest the plaintiff, tightly restraining him with metal handcuffs and subjecting him to unlawful pat-down search.

21. Plaintiff did not resist arrest.

22. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did defendant NYPD police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

23. Nevertheless, Plaintiff was unlawfully arrested by defendant officers, restrained with metal handcuffs, placed in the back of an NYPD vehicle, and transported to an NYPD Precinct Police Station against his will; upon information and belief, the 67th Precinct.

24. Upon information and belief, during his time in custody, defendant officers falsely communicated, or had communicated on their behalf, allegations that Plaintiff had committed a crime to the Kings County District Attorney's Office, to wit: Criminal Possession of a Firearm.

25. On December 7, 2021, the plaintiff was arraigned in Criminal Court and charged with crimes he did not commit, his bail was set, and he was remanded to Rikers Island Correctional Facility where he remained for approximately two (2) weeks before he was released pursuant to CPL 180.80 because the Kings County District Attorney did not indict the case.

26. The case was never indicted by the Kings County District Attorneys Office because no crime was committed by Plaintiff.

27. The false charges made against the plaintiff were dismissed and sealed in their entirety on or around January 3, 2022.

28. Some of the defendant officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

29. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION **Unlawful Stop, Question, and Search**

30. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

31. The illegal approach, pursuit, stop, and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

32. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

33. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

SECOND CAUSE OF ACTION **Violation of Fourth and Fourteenth Amendment Rights:** **Unlawful Seizure and Deprivation of Liberty**

34. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

35. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

36. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION**False Imprisonment**

37. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

38. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

39. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

40. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION**Violation of Plaintiff's Fourth and Fourteenth Amendment Rights:
Excessive Force**

41. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

42. The use of excessive force by defendants by, amongst other things, seizing and tightly handcuffing him, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION**Failure to Intervene**

43. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

44. The defendants that did not physically touch Plaintiff, but were present when other officers knowingly violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

45. Defendants failed to intervene to prevent the unlawful conduct described herein.

46. As a result of the foregoing, Plaintiff suffered significant mental and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

47. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

48. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

49. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

50. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

51. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

52. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

53. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

54. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

55. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

56. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

57. Defendants commenced and continued a criminal proceeding against Plaintiff.

58. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

59. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

JURY DEMAND

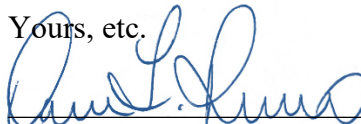
60. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
December 23, 2022

Yours, etc.



Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: NYPD POLICE OFFICER CHRISTIAN R. PEREZ, Shield No. 14888, NYPD 67th Precinct; 2820 Snyder Avenue, Brooklyn, NY 11226

NYPD POLICE OFFICER DENNIS WU, Shield No. 18327, NYPD 67th Precinct; 2820 Snyder Avenue, Brooklyn, NY 11226

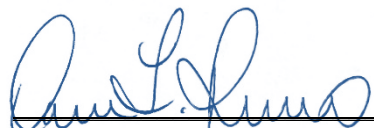
NYPD POLICE OFFICER JAMES J. MILLS, Shield No. 1069, NYPD 67th Precinct; 2820
Snyder Avenue, Brooklyn, NY 11226

ATTORNEY'S VERIFICATION

OMAR RUSSO, an attorney duly admitted to practice before the Courts of the
State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 32, 2022


OMAR RUSSO, ESQ.